

PREVAILING LEGISLATIONS

Introduction

Legislations of a country should imbibe the human rights model of disability and remove all barriers that restrict the functioning of people with disabilities (PWD). It should also ensure that PWDs are respected, protected and fulfilled. When policies become law, it is implemented and the concerned group of people can become beneficiaries of the provisions outlined in the Act. Laws are laid for protection of the vulnerable sections of the society and PWDs are one among this group who are in need of support and protection. In India, the Department of Empowerment of Persons with Disabilities (Divyangjan) in the Ministry of Social Justice and Empowerment is the nodal department responsible for implementing the policy, legislations, schemes and programmes for the welfare of PWDs. This unit shall discuss the present legislations for PWDs that are implemented by the department in compliance with the United Nations Convention on Rights of Persons with Disabilities. For a detailed review of the legislations, it is recommended to review the department's website.

UN Convention on Rights of Persons with Disabilities

The Convention on the Rights of Persons with Disabilities (CRPD) is an international human rights convention which lays down the fundamental human rights of people with disability. It is a treaty of the United Nations intended to protect the rights and dignity of persons with disabilities. It was adopted by the United Nations General Assembly on December 13, 2006. India signed the Convention and ratified it on October 1, 2007. When a treaty is ratified by a country/state, it becomes legally binding for the country to comply and fulfil its provisions. 177 states have ratified the document till date. The UNCRPD proclaims that disability results from an interaction of impairments with attitudinal and environmental barriers which hinders full and active participation in society on an equal basis.

The purpose of CRPD is to promote, protect and ensure the full and equal enjoyment of all human rights and fundamental freedoms by all PWD. It makes a paradigm shift from a charity approach to rights-based approach for PWD. The convention consists of 50 articles based on eight general principles that address on respect for inherent dignity of PWD, acceptance, accessibility, equal opportunities and non-discrimination of PWDs. Further, it enumerates a list of rights such as equality before law, right to life and freedom of expression, health, education, work, not exploited, tortured or abused, and to participate in socio-political and cultural life. The underlying message is that PWDs are not passive recipients of medical support and charity but active and autonomous participants in society.

National Legislations

Legislation plays a vital role in the treatment of persons suffering from any form of disability. The Constitution of India provides ample scope for development of legal instruments to protect the rights of the disabled people. The Government of India has enacted some legislations for PWDs which shall be briefly discussed in this section. As India is a signatory to the UNCRPD, it becomes mandatory and legally binding to change the national laws, identify obstacles and barriers and eliminate them in

order to comply with the UN convention. Accordingly, many legislations that were in place earlier than the implementation of UNCRPD such as the Mental Health Act 1987, The Persons with Disability Act 1995 were repealed and new legislations came into force complying with the requirements of the Convention.

Rehabilitation Council of India 1992

The Rehabilitation Council of India (RCI) was set up as a registered society in 1986 as an apex government body. On September, 1992 the RCI Act was enacted by Parliament and it became a Statutory Body on 22 June 1993. The Act was amended by Parliament in 2000 to make it broader based. Purpose of the Act is for the constitution of Rehabilitation Council of India for regulating the training and development of rehabilitation professionals, monitor services given to PWD, standardise the syllabi and maintenance of a Central Rehabilitation Register of all qualified professionals and personnel working in the field of rehabilitation and special education.

Rehabilitation professionals according to this Act refers to audiologists and speech therapists, clinical psychologists, hearing aid and ear mould technicians, special educators, vocational counsellors, employment officers and placement officers working with persons with disability, multi-purpose rehabilitation therapists, technicians or other categories of professionals that the Central government may include in consultation with the Council. It also suggests strict action against unqualified personnel providing services to PWD. The RCI offers a wide range of certificate, diploma, PG Diploma, Degree, PG Degree and short term or refresher courses through regular and distance mode for the disabled persons. It executes various functions related to education and training. The Council lays down policy parameters regarding various aspects of training and education in the field of rehabilitation and all institutions have to seek recognition from RCI as per provision of RCI Act, 1992.

Persons with Disability Act 1995

The Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 came into force on February 7, 1996. It is a significant step which ensures equal opportunities for the people with disabilities and their full participation in the nation building. The Act provides for both the preventive and promotional aspects of rehabilitation like education, employment and vocational training, reservation, research and manpower development, creation of barrier-free environment, rehabilitation of persons with disability, unemployment allowance for the disabled, special insurance scheme for the disabled employees and establishment of homes for persons with severe disability etc. The PWD Act categorises seven types of disabilities such as blindness, low vision, leprosy-cured, hearing impairment, locomotor disability, mental retardation and mental illness. The Act offered three percent reservation for PWD category in educational institutions and government services.

National Trust Act 1999

The National Trust (NT) for the Welfare of Persons with Autism, Cerebral Palsy, Mental Retardation and Multiple Disabilities Act, 1999 addresses the needs of four categories of disabilities. It was felt necessary for a special enactment for the protection of vulnerable groups among the disabled – persons with autism, cerebral palsy, mental retardation and multiple disabilities and to enable their well-being. Hence, the NT a statutory body of the Ministry of Social Justice and Empowerment, Government of India was set up to discharge two basic duties, viz., legal and welfare. Legal duties are executed through the Local Level Committees (LLC) that provide legal guardianship and welfare duties are carried out through different schemes implemented by the trust. It has a network of 550 registered organizations and 628 LLCs at

district level. Purpose is to create an enabling environment for them so that they can live independently as far as possible.

National Policy for Persons with Disabilities 2006

The Union Government came up with a National Policy on Disability in the year 2006 which is comprehensive and covers critical areas like education, employment, support services, access, social security, etc. The National Policy recognizes that Persons with Disabilities are valuable human resources for the country and seeks to create an environment that provides them equal opportunities, protection of their rights and full participation in society. The National Policy recognizes the fact that a majority of persons with disabilities can lead a better quality of life if they have equal opportunities and effective access to rehabilitation measures.

The crucial aspects of the policy are i). Physical Rehabilitation, which includes early detection and intervention, counselling and medical interventions and provision of aids and appliances. It also includes the development of rehabilitation professionals; ii). Educational Rehabilitation which includes vocational training; and iii) Economic Rehabilitation, to lead a dignified life in society. The Ministry of Social Justice & Empowerment is the nodal Ministry to coordinate all matters relating to the implementation of the Policy. The prime areas of intervention under the policy are: Prevention, Early-detection and Intervention; Programmes of Rehabilitation; Human Resource Development; Education of Persons with Disabilities; Employment; Barrier free-environment; Social Protection; Research; Sports, Recreation and Cultural Activities.

Rights of Persons with Disabilities Act 2016

This Act replaced the Persons with Disabilities (Equal Opportunities, Protection of Rights and Full Participation) Act, 1995 to comply with the provisions of United National Convention on the Rights of Persons with Disabilities (UNCRPD). According to the Rights of Persons with Disabilities (RPWD) Act, 2016, which was enacted on 28.12.2016 and came into force from 19.04.2017, disability is considered as an evolving and dynamic concept. The act contains 17 chapters with 102 sections, framed considering the socio-cultural and local needs of the society. The type of disabilities has been increased from seven of the earlier PWD Act to 21, which will benefit more PWDs to have access to the opportunities, schemes and welfare programmes implemented by the government.

The RPWD Act provides for special courts in each district to handle any case of their rights violation; creating institutional infrastructure according to their needs; setting up of state and national fund; 5% reservation of seats in government institutions and 4% reservation in government jobs for persons with benchmark disabilities (those with atleast 40% of any disability as per the list). It is a comprehensive Act focussed on provision of equal opportunities to PWD in India so that they can enjoy the right to equality, a life of dignity and respect and not be discriminated at any cost.

The Mental Health Care Act 2017

The Mental Health Care (MHC) Act, 2017 was passed in 2017 and came into force from May, 2018 complying with the provisions and spirit of UNCRPD recognising the human rights of Persons with Mental Illness (PMI). The MHC Act has repealed the earlier Mental Health Act 1987 which had its drawbacks of not acknowledging the rights of mentally ill people, limited definition of mental illness, etc. The Mental Health Care Act 2017 is split into 16 chapters. The objective of this Act is to provide for mental healthcare and services for PMI and to protect, promote and fulfil their rights. It provides a wide and elaborate definition of mental illness and human rights is given major importance. Various rights for PMI are also includes such as the right to access mental health care treatment, cost affordability and good-quality mental health services, accessibility, and without discrimination.

The decriminalization of attempt to suicide is one of the major highlights of the act. Some of the sections focus on enabling PMI lead a dignified life, protecting them from torture or cruel treatment, provision of adequate food, privacy, clothing, sanitary environmental conditions, and also free legal services. The facilities include acute care and outpatient and inpatient treatment. Mental Health Professional according to this Act refers to psychiatrist, persons with postgraduate degree in Ayurveda in Mano Vigyan Avum Manas Roga or Homeopathy in Psychiatry or Unani in Moalijat (Nafasiyatt) or Siddha in Sirappu Maruthuvam and also professionals registered with the State Authority under section 55 who are clinical psychologists, psychiatric social workers and mental health nurses. All these professionals are eligible for assessing the mental health and status of PMI and deciding on their admission.